

THE WAIT FOR JUSTICE FOR GUJARAT'S RIOT VICTIMS IS STILL NOT OVER

and more evidence is surfacing that the human rights lobby had, in many cases, spun macabre stories of rape and brutal killings by tutoring witnesses before the sc. In the process, it might have played a significant role in misleading the sc to suit its political objectives against Modi and his government. Last week, one of the most horrible examples of cruelty resurfaced once again as the trial of the Naroda Patiya case, where 94 persons were killed, began in the sc-monitored special court in Ahmedabad. Soon after the riots, the human rights activists and the Muslim witnesses had alleged that a pregnant woman Kausarbanu's womb was ripped open by rioters and the foetus was flung out at the point of a sword. The gruesome incident was seen as the worst-possible example of medieval vandalism in the modern age.

Last week, eight years after the alleged incident, Dr J.S. Kanoria, who conducted the post-mortem on Kausarbanu's body on March 2, 2002, denied that any such incident had ever happened. Instead, he told the court: "After the post-mortem, I found that her foetus was intact and that she had died of burns suffered during the riot." Later Kanoria, 40, told INDIA TODAY, "I have told the court what I had already written in my post-mortem report eight years ago. The press should have checked the report before believing that her womb was ripped open. As far as I remember, I did her post-mortem at noon on March 2, 2002."

A careful study of the three police complaints, claiming that Kausarbanu's womb was ripped open by the rioters, shows several loopholes. While one complaint accuses Guddu Chara, one of the main accused in the Naroda Patiya case, of ripping open Kausarbanu's womb, extracting her foetus and flinging it with a sword; another complaint accuses Babu Bajrangi, yet another accused in the case, of doing the act. A third complaint, on the other hand, does

not name the accused but describes the alleged act.

Modi will also have reasons to smile at the affidavits filed by the Muslim witnesses in the sc in 2003 at the behest of Citizens for Justice and Peace (CJP) and Teesta Setalvad on the basis of which the trial in nine cases

were stalled for six long years. The most glaring hole is in the affidavit of Nanumiya Malek, a key witness in the Naroda Gam case. In his affidavit before the sc filed on November 15, 2003, Malek stated that a newly married woman called Madina, who lost four of her relatives, including her husband in the riots, had been raped by the rioters. Malek's affidavit states: "I was witness to the crimes of murder and rape that took place on Madina and her family. I also saw seven people being burnt alive, including four orphans. I request the sc to keep the details of this rape victim confidential since she is alive and use it only for the purpose of trial and conviction of the rapists." But on May 5, 2009, in his statement before the SIT, Malek said: "I had wrongly claimed that Madina had been raped. I made the charge because of Teesta Setalvad's pressure. I kept on telling her not to include that charge in my

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Her (Kausarbanu) foetus was intact and she had died of burns suffered during the riot.

Dr J.S. KANORIA